

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Laura M. D’Anna (“D’Anna Decl.”) at ¶¶ 2-4.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the Requests are deemed admitted.

“It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (§ 2033.280, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds that the hourly rate charged by counsel is reasonable. (See D’Anna Decl. at ¶ 5.) The Court further finds that one hour is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Defendant is GRANTED IN PART. Defendant is ordered to pay to Plaintiff, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (1 hr x \$250/hr + \$60 filing fee) = \$310.

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In The Matter of Jared Casper

26CV001497

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.